

Delivery Service Agreement

This Delivery Services Agreement is made and executed on **20-May-2026** ("**Effective Date**")

By and Between

BusyBees Logistics Solutions Private Limited, a company incorporated under the provisions of the Companies Act, 2013, and having its registered office at Building# B1, Kumar Cerebrum IT Park, Kalyani Nagar, Pune, Maharashtra - 411014, India (hereinafter referred to as "**Company**" or "**Service Provider**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors-in-interest and permitted assigns) of ONE PART;

And

Mr./Ms. **Vishnu Singh Sikarwar** S/o/D/o **SUBHASH SINGH SIKARWAR**, aged about **30** years, bearing PAN **GQCPS4557N**, Residing at **J.K. NAGAR, NANDLALPUR HATHRAS ROAD KUBERPUR Kuberpur Agra Rehan Kalan Uttar Pradesh India 282006 AGRA uttar pradesh**, (hereinafter referred to as the "**Customer**", which term shall always means and include his successors, legal heirs, executors, assignee and administrators, etc) of the SECOND PART

This Agreement comes into effect when the Customer register for use of the Service Provider's services or sign an application for utilizing services of the Service Provider. By Registering or signing with the Service Provider, the Customer signifies absolute and unconditional consent to all the provisions of this Agreement in its entirety.

This Agreement constitutes a legally binding Agreement between the Customer and the Service Provider. The Customer(s) is/are advised to read this Agreement carefully. If the customer(s) is/are not in agreement with any of the terms and conditions, the Customer(s) should not use the service contemplated under this Agreement and should notify the same to the Service Provider.

The **Service Provider** and the **Customer** shall hereinafter collectively be referred to as "**Parties**" and individually as "**Party**".

WHEREAS

- a. The Service Provider is engaged in the business of providing logistics services to its clients, through its platform, it enables the Customer(s) to ship shipments to multiple locations provided on the Service Provider's portal/platform.
- b. The Service Provider has represented to the Customer that it has the relevant expertise, personnel, and skills required to meet the logistic requirements of Customer.
- c. The Customer is desirous of engaging with the Service Provider and availing the Services (as defined below), being provided.
- d. The Parties are desirous of entering into this Agreement to record the terms of their engagement.

NOW THEREFORE, in consideration of the mutual covenants and agreements set forth in this Agreement and for other good and valuable consideration, the sufficiency of which is acknowledged by the Parties, the Parties hereby AGREE to be bound as follows:

1. DEFINITIONS AND INTERPRETATION

i. In this Agreement, including in the Recitals hereof, the following words, expressions and abbreviations shall have the following meanings, unless the context otherwise requires:

a. **“Agreement”** shall mean this Delivery Service Agreement and any Annexures hereto, whether attached or incorporated by reference;

b. **“Applicable Law”** shall mean any statute, law, regulation, ordinance, rule, judgment, notification, rule of common law, order, decree, bye-law, government approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law of any of the foregoing, by any Authority having jurisdiction over the matter in question, whether in effect as of the date of this Agreement or thereafter;

c. **“Authority”** shall mean any national, state, provincial, local or similar government, governmental, regulatory or administrative authority, branch, agency, any statutory body or commission or any non-governmental regulatory or administrative authority, body or other organization to the extent that the rules, regulations and standards, requirements, procedures or orders of such authority, body or other organization that have the force of Applicable Law or any court, tribunal, arbitral or judicial body, or any stock exchange of the India or any other country;

d. **“Confidential Information”** shall mean, with respect to each of the Party, information including but not limited to, the business, customers, suppliers, services, products, affairs, performance, marketing plans and finances of each Party, which for the time being is confidential or treated by the Party as such, trade secrets (including technical data and know-how) relating to the business, suppliers, clients or the Customers;

e. **“Force Majeure”** means an act of god, war, civil disturbance, strike, lockout, act of terrorism, flood, fire, explosion or legislation or restriction by any government or other authority, pandemic or any other similar circumstance beyond the control of any Party, which has the effect of wholly or partially suspending the obligations hereunder, of the Party concerned during the continuance and to the extent of such prevention, interruption or hindrance;

f. **“Intellectual Property”** or **“Intellectual Property Rights”** shall mean any and all trademarks and services marks (whether or not registered), copyrights,

design rights (whether or not registered), moral rights, patents, performance rights, database rights, internet, WAP and other new media rights, names, logos and codes, publicity rights, and any and all other intellectual property and proprietary rights of any nature whatsoever that subsist, or may subsist, or be capable of registration, in each case in relation to the Services or any part thereof and which exist, or may exist, in any jurisdiction in the territory;

ii. Interpretation

a. Headings are used for convenience only and shall not affect the interpretation of Agreement.

b. References to this Agreement shall be deemed to include any amendments or modifications to this Agreement, as the case may be.

c. Unless the context specifies otherwise, reference to the singular includes a reference to the plural and vice versa, and reference to any gender includes a reference to all other gender.

d. Reference to statutory provisions shall be construed as meaning and including references also to any amendment or re-enactment (whether before or after the date of this Agreement), for the time being in force, all statutory instruments or orders made pursuant to a statutory provision and any statutory provisions of which these statutory provisions are a consolidation, re-enactment or modification.

e. In addition to the terms defined in this Clause 1, certain other terms are defined elsewhere in this Agreement and whenever such terms are used in this Agreement, they shall have their respective defined meanings, unless the context expressly or by necessary implication otherwise requires. Provided that in the absence of a definition being provided for a term, word or phrase used in this Agreement, no meaning shall be assigned to such term, word, phrase which derogates or detracts from, in any way, the intent of this Agreement.

2. SERVICES BEING PROVIDED BY THE SERVICE PROVIDER TO THE CUSTOMER

a. With effect from the Effective Date, the Customer hereby appoints the Service Provider, to provide to the Customer, logistics solutions ("Service"). The Service Provider hereby agrees to provide the Service in accordance with the terms and conditions of this Agreement.

b. In order to avail the Service being provided by the Service Provider, the Customer is required to create an account, by providing all the relevant, true, accurate, current and complete details, as detailed in Service Provider's Platform. The Customer shall

also be required to create its user ID and password to access the account at Service Provider's portal.

c. The Customer hereby agrees that it shall be responsible for maintaining the confidentiality of its User ID and password. The Customer shall be responsible for all the activities that occur in its account

d. The Customer shall be required to place a request for its logistics requirement, on the Service Provider's platform/portal. The customer shall place a request only after recharging its account by minimum amount mentioned in the Service Provider's portal for placing request. Upon placing a request at the Service Provider's platform, the Service Provider shall assign the same to its personnel, who shall pick up the shipment from the location provided by the Customer.

e. The Customer shall be required to clearly provide the details of the consignment, including but not limited to consignment details, consignee details, return address/ shipping address, amount of money to be collected in case of cash on delivery ("COD") shipments etc.

f. The duly packaged consignment shall be handed over to the Service Provider by the Customer or the consignee, along with the afore-mentioned details on the packaging.

g. In case of COD consignments, the Service Provider shall collect the amount of money from the consignee, as per the instructions provided by the Customer. The Service Provider shall remit such money to the account of the Customer, after the same being collected from the consignee. The Service Provider shall remit the same to the Customer's bank account (provided the Customer is on Service Provider's Platform) twice a week on T+4 basis.

h. The Customer shall be required to raise any concerns/queries, (i) with respect to a lost consignment, within 30(thirty)days from sending the consignment; and (ii) with respect to any damage, default, or any other concerns with respect to the consignment, within a period of 48 hours from delivery/ reverse delivery of the consignment subject to Clause 5(e).

i. The Customer shall be provided with a tracking number by the Service Provider for the consignment. The Customer can track the consignment, on a real-time basis using the tracking number provided.

j. The Customer agrees and acknowledges that it shall be responsible for paying all duties, taxes, any other charge/levy that may be levied on consignment under Applicable Law.

k. In consideration of the Services rendered by Service Provider, the Customer agrees to pay to the Service Provider, the Consideration specified in this Agreement or on

Service Provider's platform.

l. Refund of wallet amount: In case Customer claims refund of wallet amount, the Services Provider shall refund the same after deducting 2% of balance wallet amount or Rs. 100/-, whichever is higher along with applicable taxes.

m. If a customer creates multiple login with same PAN/GSTIN/Aadhar no./Bank account details etc. and one of the login has negative wallet balance due to weight discrepancy or RTO shipments or any other reason, in such case Service Provider shall have the right to adjust the balance from wallet balance and/or COD amount of another login without giving any prior oral or written notice.

3. FEES

a. The Customer hereby agrees that the applicable shipping base rate will be charged as per the current prevailing rate and plan (Bronze, Silver, Gold and Platinum) selected by the Customer which will be sent to the Customer at the beginning of the month or be updated on the Service Provider's platform.

b. The Service Provider shall charge fixed service charge percent (%) over and above the shipping base rate. The applicable service charge shall be mentioned in the Service Provider's Platform.

c. Other applicable charges over and above the shipping base rates shall include the following: (i) COD charges, (ii) Fuel Surcharge, (iii) convenience charges on recharge, if any and fees are as mentioned in the Service Provider's Platform.

d. Any changes in the base rate mentioned shall be informed to the Customer updated on the Service Provider's platform.

e. The Customer shall make the payment of Good and Service tax and other taxes as per their applicability.

f. Actual weight (dead weight) or volumetric weight whichever is higher, shall be taken for calculating the Freight. Volumetric weight will be charged on LXBXH/5000 (in cms). The weights shall be round off to next (0.500gm/1Kg as stated in the platform) for the purpose of calculation. Further, in case of any weight discrepancy, Customer shall raise the dispute within 7 days of Service Provider's uploading weight in the Service Provider's Platform/portal and Customer shall provide the valid evidence including but not limited to proof of weight, photos of shipments etc. against the same, if no discrepancy is raised then post the aforesaid timelines the Service Provider's weight shall be treated as final and freight against extra weight will be deducted from wallet amount or COD balance, as may be applicable.

g. Further, upon of discrepancy from Customer, Service Provider shall respond to the discrepancy raised, and the Customer shall provide its response within 7 days of receipt of Service Provider's remark. In case of no reply from customer against the same, the weights uploaded by the Service Provider shall be treated as final and freight against extra weight will be deducted from wallet amount or COD balance and no further escalations will be entertained for the respective AWB/Product.

4. TERMS OF PAYMENT:

a. The Service Provider shall issue an invoice to the Customer at the start of each calendar month for the Services that have been rendered in previous month in accordance with the terms of this Agreement.

b. Service Provider shall adjust the fees (Forward, RTO, Reverse charges and any other fees related to services provided) and taxes paid on behalf of the Customer against the cash collected from the consignee/customer and shall remit the remaining cash after adjusting as per agreed timelines.

c. It will be the responsibility of the Customer to verify the invoices and inform the Service Provider within 5 (five) days in case of any disputes regarding the contents of the invoice.

d. For any claims by the Customer like wrong freight being applied, Cash on Delivery missing, pilferage, in transit damage, the signed copy of the manifest sheet of the pickup against which the Service Provider has received the shipment has to be submitted along with the claim request. Without the signed manifest the request shall not be considered valid.

5. RETURNS/RTO of THE PRODUCTS

a. Consignment/shipments which are not accepted by the consignee for any reason whatsoever shall be returned to the Customer at the location(s) as specified by the Customer. The Customer shall ensure that such consignment are accepted at the location(s) specified by the Customer. The Service Provider shall share the Airway bill number against which the shipment returned to the Customer.

b. RTO (return to origin) charges would be same as the agreed shipping rates.

c. In case of non-acceptance of the RTO shipment by the Customer at agreed location, the Service Provider reserves the right to levy suitable demurrage charges for extended storage of such products for any period exceeding 7 (seven) days from initiation of the RTO and up to 45 (Forty-Five) days from such date. In case of non-acceptance of the Products beyond 45 (forty-five) days, the Service Provider shall have the right to dispose such consignment/shipments and the Customer will forfeit all claims in this regard towards the Service Provider.

d. In case of non-delivery of RTO shipment at Customer's location, it is the responsibility of the Customer to intimate the same to the Service Provider within 45 days of shipment being handed over to the Service Provider.

e. In event of RTO (Return to origin), Claims are tenable in case visible external damage is detected at the time of delivery, the Customer shall have to raise query (discrepancies) and write comments in the POD at the time of warehouse handover by the Service Provider. Query if raised afterwards, Service Provider shall not be held liable for any debit on account of same. Further, if outer packaging is intact properly and product is damaged inside then Service provider shall not be held responsible for any damage.

6. REVERSE PICKUPS:

a. **"Reverse Pickup"** means collection of the products by Service Provider from the end customer's address as specified by the Customer and the delivery of such products at a location mutually agreed between the Parties.

b. Reverse pick-up requested by the Customer shall be charged as per the rates mentioned in the platform.

c. The Service Provider shall not be responsible for verifying the contents of the products handed over by the end customer to its delivery Personnel. The packaging of such products shall also be the sole responsibility of the end customer. The packaging should be good enough to ensure no damage in transit. The sole responsibility of the contents of the packed consignment shall lie with the end customer. The Service Provider shall be, in no way, responsible for any shortage or damage of such consignments unless the same is caused solely due to the gross negligence of the Service Provider.

7. REPRESENTATIONS, WARRANTIES AND COVENANTS

a. The Service Provider hereby represents, warrants and covenants to the Customer that:

i. it is a validly incorporated business entity;

ii. it has the facilities, and resources required to discharge and shall discharge the Services in a timely and efficient manner; or

iii. this Agreement does not conflict with any of its existing contracts.

b. The Customer hereby represents, warrants and covenants to the Service Provider

that:

- i. it is a validly incorporated business entity or is legally competent to contract, as applicable;
- ii. it shall use the Services being provided by the Service Provider only for lawful purposes;
- iii. it shall at all times, abide by the terms and conditions mentioned in this Agreement;
- iv. it shall fulfill all the obligations as mentioned in this Agreement;
- v. it agrees and acknowledges that the Service Provider shall not be liable for any loss/ damage/ or destruction/ delay in delivery/ pick up of the consignment, unless otherwise agreed.

c. Each Party represents and warrants to the other Party that:

- i. it has all necessary rights, powers, and authority to enter into and perform this Agreement; and
- ii. the execution and performance of this Agreement by it shall not violate any applicable law and shall not breach any agreement, covenant, court order, judgment or decree to which such party or by which it is bound.

8. COMPLIANCE WITH LAWS.

Each Party shall at all times (a) strictly comply with all Applicable Law, now or hereafter in effect, relating to its performance of this Agreement; (b) pay all fees and other charges required by such Applicable Law; and (c) maintain in full force and effect all licenses, permits, authorizations, registrations and qualification from any Authority to the extent necessary to perform its obligations hereunder.

9. OBLIGATIONS OF THE MERCHANT

- a. The Customer shall be responsible for proper and tamper proof and damage proof packing of the products.
- b. The Customer shall be ready with the packed order when the courier person comes to receive the shipment, all pick-ups should be logged before the cut off time as directed by the Customer support team of the Service Provider, and no pick up

beyond the cut-off time shall be possible. The Customer agrees that they shall contact the Service Provider personnel for the pickup arrangements.

c. The Customer shall collect receipt(s) of the signed copy of the shipping manifest; it is the proof of handover of shipment to the courier companies.

d. The Customer shall strictly only use the automated system for generating the pickup and move the shipment only on the AWB number generated from the Service Provider administration panel provided during signup by the Customer for shipping services. If the Customer moves the shipment through the physical shipping docket or physical airway bill number a penalty of INR. 1000/- (Indian Rupees One Thousand only) shall be charged per airway bill number issued.

e. The Customer should properly paste and insert the GST Compliant invoice, in and on the package.

f. The Customer undertakes to fully indemnify the Service Provider in case of any breach of security procedures by the Customer (s), the Customer's employees or its vendors.

g. The Customer shall not book / handover or allows to be handed over any Product which is banned, restricted, illegal, prohibited, stolen, infringing of any third party rights, liquid materials, hazardous or dangerous or in breach of any tax laws or contains any cash, jewellery (excluding artificial jewellery), gold, silver, diamond, platinum, precious metals, precious stones, currency, bullion, letters and financial and security instruments and Service Provider shall not be liable for the Delivery of any such Products. Without prejudice to the generality of the aforesaid, an indicative list of the banned or prohibited Products is given in Annexure A. In the event Customer handover or provides the afore-said Products to the Service Provider then Service Provider shall not be responsible and liable for any loss, damage, theft, or misappropriation of such Products even if Service Provider or Delivery Personnel has the knowledge of the same and even if such loss, damage, theft or misappropriation is caused due to any reason attributable to Service Provider or Delivery Personnel. In case any restrictive/banned/prohibited item is found in the shipment handover to Service Provider or Delivery Personnel by the Customer then Customer is solely liable to pay any penalty/tax levied by any statutory authority/ airlines/Railways/ RTOs. Service Provider will share duly paid challan with the Customer.

n. Said To Contain Basis & Inspection: It is expressly understood by and between the Parties that all Products agreed to be delivered by Service Provider are on "SAID TO CONTAIN BASIS" i.e. Service Provider shall be under no obligation and is not expected to verify the description and contents of the Products declared by the Customer on the docket and as such, the Customer shall undertake and ensure to make proper, true, fair, correct and factual declaration on the docket regarding description and value of Products while booking the shipment. In case the product description is incorrect, the Service Provider shall not process the claim(s) against loss/damage against the product and no refund will be given to Customer.

h. Customer is responsible for providing documents required under the Applicable laws for carrying the shipment from Customer pick location to designated location of delivery. In case of any detention due to unavailability of requirement documents, Customer is liable to pay the tax/penalty to the respective government authorities or reimburse Service Provider in case paid on behalf of the Customer. Service Provider will not be liable for any such taxes/penalty levied for any non-compliance on the Part of the Customer.

i. In accordance with applicable laws including but not limited to GST laws, the Customer shall be solely responsible to obtain and verify documents such as E-waybills, delivery challans etc. as required for transportation of goods from one place to another, and Service Provider shall not be responsible for any loss, damage and penalty arising due to confiscation of goods by governmental agencies on account of lack of proper documentation, misdeclaration, etc. Also, Customer shall provide GST Compliant invoices along with the shipment as per Applicable Law. In case any penalty levied on Service Provider for any non-compliance related to invoices/delivery challan, Customer shall be liable to indemnify the Service Provider on actuals basis.

j. The Customer understands, agrees and acknowledges that the Service Provider is a mere Bailee of the Products, cash and is not an insurer of the same. The Customer hereby expressly and specifically waives all its rights and claims against the Service Provider arising out of or in relation to the principles of insurance.

10. INTELLECTUAL PROPERTY RIGHTS

a. The Customer acknowledges that the Service Provider is, and shall be the sole owner of all Intellectual Property Rights in and to any solutions and/or products that have been developed by the Service Provider, so as to enable it to render Services to the Customer.

b. Both the Parties acknowledge that any Intellectual Property Rights already owned by the other Party shall remain the sole property of such other Party.

11. CONFIDENTIALITY

a. Each Party may be given access to Confidential Information from the other Party in order to perform its obligations under this Agreement. The Parties undertake not to use any such Confidential Information, other than for purposes related to this Agreement, and shall use their best efforts to keep confidential and not disclose to any third party save and except on a 'need-to-know' basis any Confidential Information of the other Party.

b. The provisions of this Clause shall not apply to Confidential Information which:

- i. is or becomes part of the public domain without breach of this Agreement by a Party;
 - ii. is lawfully in the possession of a Party and subject to an existing agreement between the Parties;
 - iii. is received from a third party who lawfully acquired such information without restriction, and without a breach of this Agreement by a Party; and/or
 - iv. is released pursuant to a binding court order or governmental regulation, provided that the Party delivers a copy of such order or action to the other Party.
- c. Return of Confidential Information, If the Agreement terminates, the disclosing Party may by notice require the recipient Party to promptly return all Confidential information.
- i. return all documents containing Confidential Information which have been provided by or on behalf of the Party demanding the return of Confidential Information; and
 - ii. Destroy any copies of such documents and any document containing or made from or with reference to the Confidential Information and take all reasonable steps to expunge all Confidential Information from any computer, word processor or other device containing Confidential Information.

12. INDEMNIFICATION

The Customer shall defend, hold harmless, indemnify, and keep indemnified and harmless Service Provider, Delivery Personnel, Service Provider's directors, employees, contractors and agents ("Indemnified Parties") from and against all suits, investigations, enforcements, actions, fines, penalties, fees, interests, losses, damages and costs (including reasonable attorney fees) incurred or suffered by Service Provider, directly or indirectly, arising out of, relating to or resulting from any of the following:

- i. any non-fulfilment, non-performance or breach of any covenant/terms/conditions/applicable laws contained in this Agreement by the Customer and/or in any other document delivered by or on behalf of the Customer pursuant to this Agreement;
- ii. any governmental action, claim, proceeding initiated against Service Provider in relation to the activities provided under this Agreement;

- iii. any third-party claim initiated against Service Provider in relation to the services and/or terms and conditions provided under this Agreement;
- iv. any Loss suffered or incurred by Service Provider as a result of any action or inaction by the Customer or any person acting for an on behalf of the Customer;
- v. all costs and expenses that may be required to be incurred by the Indemnified Parties in relation to instituting and/or defending any claims or Proceedings, etc. in relation to any of the matters specified in sub-Clauses above.

13. SEVERABILITY

The invalidity or unenforceability of any provision in this Agreement shall in no way affect the validity or enforceability of any other provision herein. In the event of the invalidity or unenforceability of any provision of this Agreement, the Parties will immediately negotiate in good faith to replace such a provision with another, which is not prohibited or unenforceable and has, as far as possible, the same legal and commercial effect as that which it replaces.

14. LIMITATION OF LIABILITY AND DISCLAIMERS:

a. Under no circumstances shall the Service Provider be liable to the Customer, or any other person or entity for an amount of damages under this Agreement in excess of the amount of Consideration paid or payable by the Customer in the 1 (one) month period, preceding the date on which the claim of action first arose.

b. UNDER NO CIRCUMSTANCES WILL SERVICE PROVIDER, DELIVERY PERSONNEL OR ANY DIRECTOR, OFFICER, EMPLOYEE, AGENT OR CONTRACTOR OF SERVICE PROVIDER BE LIABLE TO THE CUSTOMER FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL OR EXEMPLARY LOSSES OR PUNITIVE DAMAGES ARISING FROM THE AGREEMENT, UNDER TORT, COMMON LAW OR UNDER PUBLIC POLICY, EVEN IF CUSTOMER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, SUCH AS, BUT NOT LIMITED TO, LOSS OF REVENUE, LOSS OF GOODWILL OR ANTICIPATED PROFITS OR LOST BUSINESS AND BE LIABLE FOR ANY LOSS OF DATA OR ANY INTERRUPTION OF ANY CUSTOMER PROPERTY DUE TO ANY CAUSE. THE PARTIES AGREE THAT THE FOREGOING REPRESENTS A FAIR ALLOCATION OF RISKS BETWEEN THE PARTIES AND IT IS AN ESSENTIAL ELEMENT FOR PARTIES TO ENTER INTO THIS AGREEMENT.

c. The Customer agrees and acknowledges that the use of the Services, is at its sole risk and that the Services are provided "AS IS".

d. The Service Provider does not provide or make any representation, warranty, or

guaranty, express or implied about the Services. The Service Provider does not verify any content or information/ details provided by the Customer, and to the fullest extent permitted by Applicable Law, the Service Provider disclaims all liability arising out of the Customer's use of the Services.

e. **LIABILITY for "LOSS or Damage":**

The liability of Service Provider for any loss or damage shall be limited as herein under, per shipment/Airway bill:

1. Forward Pickup

i. For Domestic carriage of shipments where shipments are not insured, the maximum liability is limited to Rs.2,000/- in case of forward pick up. In case the product value is below Rs.2,000/-, Service provider shall be liable for Actual Value (cost price without mark-up/declared value/invoice value whichever is lower) of the shipment. All claims under this clause shall be notified by the Customer within 30 (thirty) days from the date of such damage or loss or theft.

ii. In case shipment value is above Rs.2,000/-, Service provider shall issue COF (Certificate of Facts) after receiving a written notification from the Customer for issue of COF within 90 days from the date of shipping and Service Provider will not be liable for any cash debits. For the purpose of liability under this clause Shipment value shall be lower of cost price without mark-up /declared value/invoice value.

iii. Further, the Service Provider shall not be liable for any cash debits in case of damage to liquid or fragile shipments during transit.

2. Reverse Pick-Up

i. With Quality Check (for loss and damage): For Domestic carriage of shipments where shipments are not insured, the maximum liability is limited to Rs. 2,000/, in case of reverse pickups. The Customer shall also include the price of every Product, along with the weight in the manifest shared with the Service Provider. In cases where the Customer fails to provide the value of the Return shipment in the manifest shared with the Service Provider, the maximum liability of the Service Provider shall be Rs. 500 or 50% of the Product value, whichever is lower. Product value here is the invoice value. All claims under this clause shall be notified by the Customer within 30 (thirty) days from the date of such damage or loss or theft.

ii. Without Quality Check (for loss only): For Domestic carriage of shipments where shipments are not insured, the maximum liability is limited to Rs. 1,000/, in case of reverse pickups. The Customer shall also include the price of every

Product, along with the weight in the manifest shared with the Service Provider. In cases where the Customer fails to provide the value of the Return shipment in the manifest shared with the Service Provider, the maximum liability of the Service Provider shall be Rs. 500 or 50% of the Product value, whichever is lower. Product value here is the invoice value. All claims under this clause shall be notified by the Customer within 30 (thirty) days from the date of such damage or loss or theft.

iii. For shipments insured by Customer, Service Provider may at the request of the Customer, issue Loss/Damage/Shortage certificate within 90 days from the date of shipping. All claims must be notified to Service Provider in writing failing which the Customer forfeits and waves its rights for such claim.

iv. The Service Provider shall not be liable for any cash debits in case of damage to liquid or fragile shipments during transit.

3. Document Delivery

For Domestic carriage of shipments where shipments are not insured, the maximum liability is limited to Rs. 100/- in case of documents.

4. Any claims by the Customer should be submitted along with the copy of the signed shipping manifest. It is agreed that all processed claims against loss and damage of shipments as stated above, shall be credited to wallet balance to the Customer. The Service Provider shall not make any direct refund to the bank account of the Customer.

5. The Service Provider shall issue credit note against lost/damage product(s) within 30 (thirty) days of communication by Customer to the Service Provider or after confirming by the Service Provider the status of shipment as lost or damage, whichever is later.

15. TERM AND TERMINATION

a. This Agreement will remain in full force and effect while the Customer is availing any of the Services in any form or capacity.

b. Either Party shall have the right to terminate this Agreement by giving written notice to the other in the event that:

i. the other Party has committed a breach of any of its obligations hereunder which cannot be remedied; or

ii. the other Party has committed a material or repeated breach of any of its obligations hereunder and has failed to remedy such breach (if the same is capable of remedy) within thirty (30) days of being required by written notice so to do.

c. Either Party's right to terminate this Agreement shall be without prejudice to the other rights and remedies it may have under Applicable Law.

d. Either Party may terminate this Agreement for convenience, by giving a prior written notice of 30 days, to the other Party

16. CONSEQUENCES OF TERMINATION

a. Upon termination of this Agreement, any rights or authority granted by either Party to the other Party shall terminate with immediate effect and all payments accrued before or on the effective date of termination will become immediately due and payable. The Service Provider shall not be liable to the Customer or any third party for any termination of the Customer access to the Services.

b. The accrued rights of the Parties as at termination, or the continuation after termination of any provision expressly stated to survive or implicitly surviving termination, shall not be affected or prejudiced in any manner.

c. All the Confidential Information exchanged between the Parties during the Term of this Agreement, shall be either returned to the disclosing party or destroyed by the receiving party within a period of five (5) days from the date of termination.

d. Once temporarily suspended, indefinitely suspended or terminated, the Customer may not continue to use the Services under the same account, a different account or re-register under a new account, unless explicitly permitted by the Service Provider.

17. Governing Laws and Dispute Resolution

i. In case of dispute between the parties, the Customer hereby agrees to negotiate in good faith to resolve any dispute between them regarding this Agreement. If the negotiations do not resolve the dispute to the reasonable satisfaction of the parties, then each party shall nominate a person with respectable professional standing and unimpeachable conduct as its representative. These representatives shall, within 30 (thirty) days of a written request by either party to call such a meeting, meet in person and shall attempt in good faith to resolve the dispute.

ii. Upon the parties being unable to appoint the representatives as aforesaid, or if the disputes cannot be resolved by such persons in such meeting as aforesaid, in such

event, the disputes or differences shall be submitted to final and binding arbitration at the request of either of the parties upon written notice to that effect to the other. The disputes or differences shall be resolved by arbitration in accordance with the Arbitration and Conciliation Act, 1996 and amendments thereto. The dispute shall be settled by a panel of 1 (One) arbitrator, appointed by parties together. The seat and venue of arbitration shall be Pune, Maharashtra. The language of the arbitration shall be English. Any arbitration award by the arbitral tribunal shall be final and binding upon the parties, shall not be subject to appeal, and shall be enforced by judgment of a court of competent jurisdiction. The costs of arbitration shall be at the discretion of the arbitral tribunal.

iii. This Agreement and the relationship between the parties hereto shall be governed by, and interpreted in accordance with, the laws of India and subject to the above Clause (Dispute Resolution) the courts of Pune, India shall have exclusive jurisdiction over all matters arising pursuant to this Agreement.

18. FORCE MAJEURE:

i. In the event either Party (the "Prevented Party") is prevented from performing its obligations (except payment for the services utilized or agreed fixed cost, if any) under this Agreement by force majeure, such as earthquake, typhoon, flood, public commotion, torrential rains, heavy winds, storms or other acts of nature, fire, terrorist acts, threatened terrorists acts, explosion, acts of civil or military authority including the inability to obtain any required approvals or permits, strikes, riots, war, plagues, other epidemics, or other unforeseen events beyond the Prevented Party's reasonable control (an Event of Force Majeure), the Prevented Party shall notify the other Party without delay and within fifteen (15) days thereafter shall provide detailed information concerning such event and documents evidencing such event, explaining the reasons for its inability to execute, or for its delay in the execution of, all or part of its obligations under this Agreement. Service Provider will not be responsible for any lost and damage occurred in Force majeure situation.

ii. If an Event of Force Majeure occurs, neither Party shall be responsible for any damage, increased costs, or loss which the other Party may sustain by reason of such a failure or delay of performance, and such failure or delay shall not be deemed a breach of this Agreement. The Prevented Party shall take reasonable means to minimize or remove the effects of an Event of Force Majeure and, within the shortest reasonable time, attempt to resume performance of the obligations delayed or prevented by the Event of Force Majeure.

19. MISCELLANEOUS PROVISIONS

i. Assignment: This Agreement and the rights and obligations herein may not be assigned by the Customer to the other without the written consent of the other Party.

ii. Amendments and Waivers: This Agreement may be amended time to time by the

Service Provider and same shall be notified and updated on Service Provider's Portal. Any amendment or waiver effected in accordance with this Clause 13.5 shall be binding upon both Parties.

iii. Notices: Except as may be otherwise provided herein, all notices, requests, waivers and other communications ("Notices") shall be deemed to be delivered as provided herein: (a) if delivered to the addressee ("Receiving Party") by hand: upon the Notice being acknowledged by written receipt by the Receiving Party; (b) if sent by facsimile: upon the receipt of transmission report confirming transmission; (c) if sent via an overnight courier: upon receipt (evidenced by proof of delivery); (d) if sent via electronic mail: upon such email being sent (outgoing mail logs can be provided as proof, as required). The Notices shall be addressed to the Parties at the contact details provided below. Each Party shall promptly inform the other Parties of any change to its contact details.

To the Customer:

Address: J.K. NAGAR, NANDLALPUR HATHRAS ROAD KUBERPUR Kuberpur
Agra Rehan Kalan Uttar Pradesh India AGRA uttar pradesh 282006

E-mail: shivaynew666@gmail.com

To the Service Provider:

Address: Building# B1, Kumar Cerebrum IT Park, Kalyani Nagar, Pune,
Maharashtra - 411014

Contact: +91 (20) 6729 4261

E-mail: wallet.support@xpressbees.com

iv. Entire Agreement: This Agreement, the Annexures, and recitals hereto (which are hereby expressly incorporated herein by reference) constitutes the entire understanding between the Parties and supersedes all other discussions and understanding between the Parties.

v. Survival: The provisions of Clauses Intellectual Property Rights, Confidentiality, Indemnification and such other provisions of this agreement, which are by their nature, intended to survive the termination of this Agreement, shall survive the termination of this Agreement.

vi. No Partnership: Nothing contained in this Agreement shall be construed or interpreted as constituting a partnership or a joint venture between the Parties.

Neither Party shall have any authority to bind the other Party in any manner whatsoever. This Agreement shall be construed to have been entered on a principal-to-principal basis.

The Customer agrees and acknowledges that it has read the aforesaid terms and condition and hereby agrees to adhere to the Same.

For and on behalf of Merchant

For and on behalf of Company

ANNEXURE A

INDICATIVE LIST OF PROHIBITED ITEMS

Explosives

Dangerous Liquids/Semi Liquids Radioactive Material Gases

Magnetized Material Poisonous/Corrosive Material Stuffed Toys Flammables

Acetyl benzoyl peroxide solid or solutions

Aerosol un-inhibited aerosol products/ class of poison A.O.S. Air liquid non-pressurised/aluminium diethyl monochloride Aluminium Dross

Wet Arsenic Black Powder Bombs Explosive Caps Blasting

Chlorophenol and Methyl Bromide Mixtures Chlorophenol and Methyl Chloride Mixtures Cigarettes self-lighter

Diisopropylbenzene Hydroperoxide solution Ethyl Acrylate Uninhibited Explosives or explosive devices Fire extinguisher charges

Fuses

Detonating Grenade Bursting Charge Grenades Tear Gas Hydrogen Liquid Hydrogen Sulfide

Isopropyl Peroxycarbonate stabilised Isopropyl Peroxycarbonate unstabilised Low Explosives Mines Explosives Nickel Carbonyl Acetal

Acetone Ammonium Fluoride Argon Gaseous Material

Formic Acid Fuel oil or aviation turbine engine Barium Chlorate benzene Burnol

Calcium Chlorate

Carbon Dioxide Gaseous or liquified Charcoal activated Nitrogen Gaseous & Silver Nitrate Copper Cyanide Crude Oil Petroleum Distillate Diethylamine Ether

Ferric Chloride Arsenic Acid Solid. Helium Gas Hydrochloric and Mixtures Lead Nitrate matches

Safety (Book card or strike box) Malathion perfumes Methanol Chloroform

Indian Postal Articles Currency Philately Pornography Bullion Drugs and Narcotics (Illegal)

Firearms, parts thereof and ammunition Precious & Semi-Precious Items

ANNEXURE B

Standard Operating Procedure

Heading	Description	Service Provider Adherence
	Standard Pickup/ Manifestation Cut off - 11:30 AM Shipments Manifested till 11:30 AM, will be eligible for same day pickup. Pickup requests will be available for 3 days after manifestation. If the first mile pickup is not completed for mentioned reason, Service Provider will arrange three attempts as per SOP post which it will get truncated. Pickup Escalations should be raised before 12:00 noon to arrange same day pickup. Service Provider will share First Mile Pickup - MIS report daily, it will include cases of two categories: 1. Where pickup is completed. 2. Where pickup is attempted but not completed.	Maximum Pick-up attempt on day 0
First Mile SOP	All vendor/DS pickups will be done with 100% Temp scan at the vendor's location, with temp scan logs being pushed over API. Post Pickup if any shipment is not scanned within 24 hrs same needs to be highlighted to respected KAM / SPOC within 48hrs of Temp in scan / Pickup Done. Service Provider will not arrange to pick "Pre ship Cancelled/RTO" Shipments. Temp scan is not allowed on RTO Notified shipments. Post pickup if soft data is not available, then Service Provider will RTO the shipments and will apply Local Pickup and RTO Charges. For Out of Pickup area: Service Provider vendor Pin code is serviceable, but address is out of pickup area.	Maximum Pick-up attempt on day 0 If pick up not arranged, then share reasons against pick up not done in pick up performance report. Service Provider can arrange pickup for a minimum volume commitment of 150 shipments per day and the same needs to be pre-notified prior 2 days.

**Fragile
shipment
(Pickup
SOP)**

Customer & seller should ensure that packaging is transport worthy and proper fragile stickers are affixed on the same. If the Service Provider representative is able to see visible issues in packaging, then representative will have the right not to pick the shipment. In case of proper packaging with Fragile Stickers, Service Provider will pick the shipments however we are unable to take any liability if shipment gets damaged.

**First Mile
Dispute**

Pickup disputes require to be raised within 24hrs - 48hrs. If submitted proof (including all shipment's handover manifest copy) conclusively proves the handover, then security investigation shall be closed within 7 working days.

Forward Attempt TAT - (Pickup Day + TAT)

LOCAL - 1 -3 days,
REGIONAL - 3 -6 days,
METRO - 3 -7 days,
REST OF INDIA - 6 - 12 days,
NE, J& K, KERALA - 8 - 15 days .

Shipments will be attempted as per Promised Delivery date.

Service Provider will ensure to attempt all shipment within 15 days of pick-up.

Max within 15 days,
Service Provider must ensure 100% attempt (Exempting in Force Majeure situation)

After first attempt, if shipment is undelivered then -

- a) Service Provider will arrange 2 attempts for Temporary NDR shipments as per SOP
- b) 90% of reattempt requested shipments needs to close with attempt within 48 hrs post instruction received from Customer. (Eligibility - Shipments having less than 3 attempts) NDR Bifurcation - Pls. see below table.

Forward Life Cycle and SOP

NDR Report will be pushed through API as well as through NDR report. Customer must share alternates within 24 hours, failing to which Service Provider will process RTO. The NDR instructions must be shared on using the Portal / API and should be provided via email as well.

NDR / attempted shipments will be processed for RTO according to SOP, on 15th day post pickup after completing the SOP attempt.

Delivery Dispute Escalations needs to be highlighted within 48hrs post-delivery. (POD Dispute)

All Shipments handed over to Service Provider must carry valid tax invoice under the law. In case of any discrepancy in the invoice, customer need to pay the taxes and penalty, if levied by the tax department along with vehicle detention and legal charges. All such shipments will have extended lifecycle.

Customer shall ensure that no shipment which are prohibited and not travel worthy will be handed over to Service Provider. In case of any damage/loss to such shipment, Service Provider will not be liable for any loss/damage of such shipment.

Service Provider will not be liable for any debit against damage of Liquid / Frazile shipments.

		Max 30 days post RTO Marked (Service Provider shall close shipments in return leg within 30 days from the latest RTO initiation date except during sale period & if the shipments fall under uncontrollable situations.)
	RTO shipment will be closed within 30 days post the "RTO Notification" pushed.	
		In case if RTO Undelivered shipments breaches the TAT, Service Provider will not accept any debit for TAT breach
RTO Life Cycle and SOP	For RTO Undelivered cases- Service Provider will share the details, Customer must validate and share alternates within 48hrs.	
	Post WHHandover - Any delivery dispute to be raised by client within 2 days of the RTO Delivery / Warehouse Handover date. Client shall keep the video footage of the same to provide the evidence of such dispute.	
	Requirement to raise dispute:	
	1. Video Footage for the handover and unboxing	
	2. Packaging video evidencing the pick-up.	
	Please note that no debit shall be accepted for Liquid/ Fragile/ prohibited items.	
	Any Customer whose RTO is more than 40% in a particular month, Service Provider will not lodge any claim for any dispute related to product of such Customer.	
Reverse Pickup SOP	The pickup attempt on the day 0 will organized as per cut off. For Non-QC - This is closed Box, no specific parameter will be checked. For QC - QC Parameter will be checked basis mutual consent.	
	Service Provider shall provide closure for all shipments within 60 days of pick-up and shipment level NDC needs to be exchanged within 90 days. In case of festive season/ sale season the lifecycle gets extended automatically. Cases where Client instructions for RTO are made after 15 days of pick-up, the lifecycle of such shipment shall stand extended for such number of days	
Overall Life Cycle	.	
	E-way Bill is Mandatory -for all shipments above Rs. 50,000/- invoice value. Customer needs to share authorization to Service Provider for preparation of E-way bill	
	For Prepaid - OTP Based Delivery is aligned	
	OTP Verified - Consignee Refused Shipments will be RTO'ed same day.	

NDR Status & SOP Attempt

NDR Status	Type
Customer not available x Customer not available at given address and not reachable over phone	Temporary NDR
Customer not available x Office or Residence closed	Temporary NDR
Customer wants future delivery	Temporary NDR
Customer wants evening delivery	Temporary NDR
Doorstep delivery not attempted	Temporary NDR
COD amount not ready	Temporary NDR
Payment could not be completed	Temporary NDR
Residence/Office Closed: Can't Deliver	Temporary NDR
UnAssign Shipment from SR to ReAssign for delivery	Temporary NDR
Entry not permitted	Temporary NDR
Customer Not Available & Mobile not reachable	Temporary NDR
Delivery not attempted (time constraint)	Temporary NDR
Shipment Misroute	Temporary NDR
Future Delivery : Requested by Customer	Temporary NDR
Address incomplete	Permanent NDR
Long Pin code	Permanent NDR
Wrong Pin code	Permanent NDR
Force majeure situation x Any natural calamity	Permanent NDR
Force majeure situation x Political disturbances	Permanent NDR
Customer not available x Security Gate restriction and customer not contactable	Permanent NDR
Customer not available x Entry not permitted in building or society	Permanent NDR
Customer not available x Customer wants delivery at different address	Permanent NDR
Customer not available x Customer out of station	Permanent NDR
Customer refused to accept	Permanent NDR
Customer validation failure	Permanent NDR
Customer wants open delivery	Permanent NDR
Self-collect	Permanent NDR
Shipment got stolen or lost after OFD	Permanent NDR
Entry not permitted due to regulations	Permanent NDR
Add Incomplete/ Incorrect & Mobile not reachable	Permanent NDR
ODA (Out of Delivery Area)	Permanent NDR
Delivered Dispute	Permanent NDR
Non-Delivered Dispute	Permanent NDR
Shipment seized by Govt Authority	Permanent NDR
Natural Calamity Cannot Reach	Permanent NDR
Political Disturbance	Subject to situation / Permanent NDR
Work from Home	Subject to situation / Permanent NDR
Force majeure situation	Subject to situation / Permanent NDR